



CHAPTER xi.

An Act to confer further powers upon the Nottinghamshire and Derbyshire Traction Company and for other purposes. [18th July 1947.]

WHEREAS the Nottinghamshire and Derbyshire Traction Company (hereinafter called "the Company") were incorporated by the Nottinghamshire and Derbyshire Tramways Act 1903 by their then name of the Nottinghamshire and Derbyshire Tramways Company and under the powers contained in the Nottinghamshire and Derbyshire Tramways Acts 1903 to 1922 constructed and acquired certain tramways in the counties of Nottingham and Derby and leased and ran tramcars over part of the tramway system belonging to the lord mayor aldermen and citizens of the city of Nottingham (hereinafter called "the corporation"):

3 Edw. 7.
c. ccii.

And whereas by the Nottinghamshire and Derbyshire Traction Act 1928 the Company were authorised to abandon their said tramways and under the powers contained in the Nottinghamshire and Derbyshire Traction Acts and Order 1903 to 1936 the Company run services of trolley vehicles and public service vehicles and exercise running powers over part of the trolley vehicle system of the corporation:

18 & 19 Geo. 5.
c. xciii.

And whereas it is expedient that such powers be conferred upon the Company and such provisions be made as are in this Act more particularly set forth:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords

Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Nottinghamshire and Derbyshire Traction Act 1947.

Citation of Acts.

2. The existing Acts and Order and this Act may be cited as the Nottinghamshire and Derbyshire Traction Acts and Order 1903 to 1947.

Interpretation.

3. In this Act the several words and expressions to which by the Act of 1928 or the Acts wholly or partially incorporated therewith meanings are assigned shall have the same respective meanings unless varied by this Act or unless there be something in the subject or context repugnant to such construction. And in this Act unless the context otherwise requires the following expressions shall have the respective meanings in this section applied to them (that is to say):—

“ Act of 1928 ” means the Nottinghamshire and Derbyshire Traction Act 1928;

26 Geo. 5. &
1 Edw. 8.
c. xxviii.

“ Act of 1936 ” means the Nottinghamshire and Derbyshire Traction Act 1936;

“ Company ” means the Nottinghamshire and Derbyshire Traction Company;

“ existing Acts and Order ” means the Nottinghamshire and Derbyshire Traction Acts and Order 1903 to 1936.

Exercise of financial powers by directors.

1 & 2 Geo. 5.
c. lxxxviii.

8 Edw. 7. c. ci.

12 & 13 Geo. 5.
c. xxviii.

4.—(1) Subject to the provisions of subsection (2) of this section the directors may from time to time by virtue of this section and without further or other sanction or authority exercise any power vested in the Company by section 68 (Capital) of the Act of 1903 as varied by section 22 (Reduction of capital) of the Act of 1911 section 30 (Power to issue share warrants to bearer) of the Act of 1908 sections 44 (Power to issue portion of authorised capital as preference shares) and 46 (As to disposal of shares) and subsection (2) of section 47 (Power to borrow in respect of authorised capital) of the Act of 1922 and sections 18 (Redeemable preference shares) and 19 (Power to pay commissions) of the Act of 1936 and the said sections shall be deemed to have enabled the directors to raise any such sums of money as are mentioned in those sections or any of them and to have conferred upon the directors all powers necessary for the purposes thereof.

(2) Nothing in subsection (1) of this section shall authorise the exercise of the powers thereby conferred otherwise than in compliance with the provisions of the Exchange Control Act 1947 of any defence regulations within the meaning of the Supplies and Services (Transitional Powers) Act 1945 for the time being having effect by virtue of that Act and of any orders for the time being in force made by the Treasury under section 1 of the Borrowing (Control and Guarantees) Act 1946.

10 & 11 Geo. 6.
c. 14.

9 Geo. 6. c. 10.

9 & 10 Geo. 6.
c. 58.

5. Section 95 (Committee of directors) of the Companies Clauses Consolidation Act 1845 shall in its application to the Company be deemed to authorise the directors to appoint any one or more of their body as a committee for the purpose of passing transfers and sealing certificates of any shares or other securities of the Company and of executing any other powers exerciseable by the directors which may from time to time be delegated to them.

Committee of
directors.

8 & 9 Vict.
c. 16.

6. A resolution in writing signed by all the directors shall be as valid and effectual as if it had been passed at a meeting of the directors duly convened and held.

Resolution in
writing.

7. Notwithstanding anything contained in the Companies Clauses Acts 1845 to 1889 it shall not be obligatory on the Company to keep a register of transfers of shares or a register of transfers of mortgages so long as the Company in lieu of those registers shall keep a file of all transfers and evidence of transmission of any shares or mortgages of the Company which are sent to them for registration in accordance with the provisions of those Acts.

Register of
transfers.

8. Section 98 (Proceedings to be entered in books to be signed by chairman and to be evidence) of the Companies Clauses Consolidation Act 1845 shall in its application to the Company have effect as if the words " or of the next succeeding meeting " were inserted therein after the words " shall be signed by the chairman of such meeting."

Signing of
minutes.

9. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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*Nottinghamshire and Derbyshire 10 & 11 GEO. 6.
Traction Act, 1947.*

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